TITLE COMMITMENT

Pinecrest Office Center | Tempe, AZ

Commitment No.	TC-5555
Property	Pinecrest Office Center, 4470 Highland Street, Tempe, AZ 15032
Proposed Insured	Keel & Compass Properties
Effective Date	December 11, 2019

1. Schedule A - Commitment. Effective Date: December 11, 2019. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Keel & Compass Properties. Amount of Insurance: $31,430,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AZ. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

2. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AZ. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

3. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Keel & Compass Properties. Provide evidence of authority of signatories. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AZ. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

4. Schedule B-II - Exception. Taxes and assessments for the year 2021 and subsequent years, a lien not yet due and payable. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

5. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 39, Page 39, Official Records of the county. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

6. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 232323, as amended. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

7. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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8. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

9. Schedule A - Commitment. Effective Date: December 11, 2019. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Keel & Compass Properties. Amount of Insurance: $31,430,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

10. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AZ. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

11. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Keel & Compass Properties. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

12. Schedule B-II - Exception. Taxes and assessments for the year 2019 and subsequent years, a lien not yet due and payable. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

13. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 17, Page 17, Official Records of the county. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

14. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 202020, as amended. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AZ. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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15. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AZ.

16. Schedule B-II - Exception. Matters shown on survey prepared by Compass Point Geomatics, including encroachments, if any, along the boundary lines. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

17. Schedule A - Commitment. Effective Date: December 11, 2019. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Keel & Compass Properties. Amount of Insurance: $31,430,000. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

18. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

19. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Keel & Compass Properties. Provide evidence of authority of signatories. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AZ.

20. Schedule B-II - Exception. Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

21. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 18, Page 18, Official Records of the county. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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